

Court No. - 21

Case :- WRIT - C No. - 41089 of 2023

Petitioner :- Raisha Khan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Aqueel Ahmad

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Donadi Ramesh, J.

1. Learned counsel for the petitioner states that he has no concern with the outstanding demands against other persons.
2. Learned counsel appearing for the respondent-Electricity Department seeks time to apprise the Court whether the facility of prepaid meter is available in District Kanpur Nagar or not and if available, why it cannot be granted to the petitioner.
3. List on 13th December, 2023 as a fresh case.

(Donadi Ramesh, J.)

(Manoj Kumar Gupta, ACJ.)

Order Date :- 29.11.2023

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Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The instant petition has been filed for a writ of mandamus commanding respondents no.2 to 4 to give electric connection to the petitioner within a fixed time frame.

2. The case of the petitioner is that she is a poor lady and belongs to B.P.L. category. She is living in a slum where there are many houses. Number of persons are having separate electric connections in their name. The petitioner had filed the application for release of electric connection to her but the respondents have neither sanctioned the electric connection nor have replied to her application.

3. Ms. Usha Kiran, learned counsel appearing on behalf of the Electric Department, on instructions, states that the petitioner is living as a tenant in the house of one Raj Kishore Shukla. She states that there was an electric connection in the name of Raj Kishore Shukla and certain amount is also due against the said electric connection, which has not been paid so far. However, she does not dispute that so far the petitioner was not having any electric connection nor there was any due against her.

4. The specific case of the petitioner is that there are several small houses over Gata No.126-A, Usmanpur Gaon, Kanpur and the respondents are wrongly associating the petitioner with the recoveries pending against other persons.

5. Counsel for the petitioner also emphatically disputes the contention that the petitioner is occupying the premises as tenant of any person.

6. Ms. Usha Kiran, learned counsel appearing for the Electric Department, does not dispute that under Clause 4.4 (f)(i) the electric connection could be released in favour of the petitioner after obtaining Indemnity Bond even if she is assumed to be tenant

of the premises.

7. Counsel for the petitioner states that the petitioner is ready to execute Indemnity Bond as per Annexure 4.2 as stipulated under the U.P. Electricity Supply Code, 2005.

8. Accordingly, we dispose of the writ petition providing that in case the petitioner executes Indemnity Bond in form 4.2 and completes all other formalities, the respondents will sanction electric connection in her favour without any delay.

9. The petition stands **disposed of**.

Order Date :- 13.12.2023

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)